

		FEM has since responded to the subpoena for business requests. If Defendant believes the responses are deficient, she must file a separate motion. <u>Sanctions</u> The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2025.480(j).) Here, FEM objected to all discovery requests on the basis of attorney client privilege, relevance, undue burden, privacy rights, and mediation privilege. FEM failed to provide any substantial justification for serving blanket boilerplate objections to all requests without individually analyzing the requests. For example, the first 2 requests are related to communications between FEM and Nikki Gilleland’s counsel. Such communications are not protected by the attorney-client privilege, attorney-work product, or involve any privacy concerns. Thus, FEM did not act with substantial justification.
6	2024-01438529 <i>Gray vs. Speno</i>	1) Motion to Compel Further Responses to Form Interrogatories 2) Motion to Compel Production Plaintiffs’ motions against Defendant ARJO Holding USA, Inc. are CONTINUED to 1/15/26 at 10:00 a.m. in this Department. The parties/counsel have not engaged in sufficient attempts to meet and confer. (See Code Civ. Proc., § 2016.040; <i>Clement v. Alegre</i> (2009) 177 Cal.App.4th 1277, 1293 [Discovery Act requires moving party to declare he or she has made a serious attempt to obtain an informal resolution of each issue; rule designed to encourage parties to work out their differences informally to avoid necessity for formal order, which lessens burden on court and reduces unnecessary expenditure of resources by litigants]; <i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 402 [central precept of Discovery Act that discovery be self-executing].) The parties/counsel are ORDERED to engage in additional attempts to meet and confer <i>in person, telephonically, or over remote videoconferences (not email)</i> no later than 12/5/25. If Defendant agrees to serve further responses, Defendant shall serve verified further responses no later than 12/31/25. The parties/counsel are ORDERED to file a <i>JOINT STATUS REPORT</i>, no longer than five pages total, indicating whether court intervention remains the only option to resolve this discovery dispute, and if so, why, no later than 1/7/26. The report should clearly state <u>in the opening paragraph</u> which responses remain at issue.

		Failure to comply with this order may result in sanctions against the non-compliant party and/or their counsel pursuant to Code of Civil Procedure section 177.5. Plaintiffs to give notice.
8	2024-01371844 <i>Price vs. Ziemba</i>	Motion for Summary Judgment and/or Adjudication Defendants Tracey Finney and Bradley Finney’s motion for summary judgment is GRANTED. A defendant moving for summary judgment or summary adjudication has met his or her burden of showing that a cause of action has no merit if he or she shows one or more elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. (Code Civ. Proc., § 437c(p)(2).) Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense. (<i>Ibid.</i>) The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law. (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) Defendants’ request for judicial notice In support of their motion, Defendants request judicial notice of the following documents (ROA 122): (1) Exhibit A –First Amended Complaint filed by Plaintiff Reid Price on 8/5/24 A court may take judicial notice of its own records. (Cal. Evid. Code, § 452, subd. (e).) While “[a] court may take judicial notice of the <i>existence</i> of each document in a court file, [it] can only take judicial notice of the <i>truth</i> of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments.” (<i>People v. Thacker</i> (1985) 175 Cal.App.3d 594, 599, italics in original, citation omitted.)) Accordingly, the Court GRANTS Defendants’ request for judicial notice. Plaintiff’s cause of action for negligent supervision “To establish liability in negligence, it is a fundamental principle of tort law that there must be a <i>legal duty</i> owed to the person injured and a breach of that duty which is the proximate cause of the resulting injury. . . [A] person is ordinarily not liable for the actions of another and is under no duty to protect another from harm, in the absence of a <i>special relationship</i> of custody or control.” (<i>Romero v. Superior Court</i> (2001) 89 Cal.App.4th 1068, 1078-1079, citations omitted.)